

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Perri Fagin	Team: Squad #12	CCRB Case #: 201701319	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 02/20/2017 10:30 AM	Location of Incident: Intersection of Pennsylvania Avenue and Atlantic Avenue in Brooklyn; 75th Precinct stationhouse	18 Mo. SOL 8/20/2018	Precinct: 75
Date/Time CV Reported Mon, 02/20/2017 1:30 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/20/2017 1:30 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Syed Jafri	14711	949136	075 PCT
2. POF Lisa Deese	09889	937888	075 PCT
3. POF Jeanne Mounsey	01030	928578	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kurt Klenke	10852	940337	075 PCT
2. SGT Michaelang Hidalgo	497	936043	075 PCT
3. SGT Abdullraha Hussein	03550	944271	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Syed Jafri	Abuse: At the intersection of Pennsylvania Avenue and Atlantic Avenue in Brooklyn, Police Officer Syed Jafri refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated
B . POF Jeanne Mounsey	Abuse: At the 75th Precinct stationhouse in Brooklyn, Police Officer Jeanne Mounsey did not process § 87(2)(b)'s complaint regarding an officer.	B . Unsubstantiated
C . POF Lisa Deese	Abuse: At the 75th Precinct stationhouse in Brooklyn, Police Officer Lisa Deese did not process § 87(2)(b)'s complaint regarding an officer.	C . Unsubstantiated

Case Summary

§ 87(2)(b) the sole victim in this case, filed this complaint via the CCRB's call processing system on February 20, 2017.

On February 20, 2017, at approximately 10:30 a.m., § 87(2)(b) was pulled over by Police Officer Kurt Klenke and Police Officer Syed Jafri, both of the 75th Precinct, near the intersection of Pennsylvania Avenue and Atlantic Avenue in Brooklyn. § 87(2)(b) was issued a summons for operating a vehicle while on her cellphone, and she engaged in a dispute with PO Jafri regarding this violation. § 87(2)(b) allegedly requested PO Jafri's name and shield number, but he left the scene without providing the requested information (**Allegation A**). § 87(2)(b) eventually went to the 75th Precinct stationhouse and spoke with PO Jeanne Mounsey and PO Lisa Deese, both of the 75th Precinct, from whom she requested to file a complaint regarding PO Jafri and the traffic summons. PO Mounsey allegedly told § 87(2)(b) that the information to file a complaint was on the wall, and pointed to a poster on the wall that said, "Call 311," and left the room (**Allegation B**). PO Deese told § 87(2)(b) not to call 311, but to call the other phone number on the poster which belonged to the CCRB (**Allegation C**). § 87(2)(b) left the stationhouse, still wanting to file a report in-person at the stationhouse.

There were no arrests made as a result of this incident. No video footage was available from this incident.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of May 17, 2017, § 87(2)(b) had not filed a Notice of Claim with the Office of the City Comptroller regarding this incident (Board Review 02).

Civilian and Officer CCRB Histories

- This is § 87(2)(b) first CCRB complaint (Board Review 03).
- PO Jafri has been a member-of-service for six years and has four prior complaints filed against him involving six allegations, none of which were substantiated § 87(2)(g)
- PO Mounsey has been a member-of-service for 15 years and this is the first complaint filed against her.
- PO Deese has been a member-of-service for 11 years and has one prior complaint filed against her involving one allegation, which was not substantiated § 87(2)(g)

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: At Pennsylvania Avenue and Atlantic Avenue in Brooklyn, Police Officer Syed Jafri refused to provide his name and shield number to

§ 87(2)(b)

§ 87(2)(g) § 87(2)(b) was pulled over by PO Jafri (Board Review 07) and PO Klenke. PO Jafri approached the driver side of the vehicle and spoke to § 87(2)(b) while PO Klenke was on the passenger side. § 87(2)(b) and PO Jafri engaged in a verbal dispute regarding § 87(2)(b) alleged traffic violation. PO Klenke wrote a summons for speaking on her cellphone while operating a vehicle. PO Klenke remained in the patrol car while PO Jafri exited and approached § 87(2)(b) vehicle. When PO Jafri gave § 87(2)(b) the summons, she requested his name and shield number.

§ 87(2)(b) alleged that while PO Jafri was directly outside of § 87(2)(b) front driver side window, in an elevated voice, § 87(2)(b) requested his name and shield number but PO Jafri simply said, “I’m leaving,” turned around, returned to his patrol car, and drove away without providing the requested information.

PO Jafri testified that after § 87(2)(b) took the summons, she requested a pen from him to document his name and shield number. PO Jafri pointed to his clearly displayed shield and nameplate, verbally spelled his name and shield number, but refused to provide § 87(2)(b) with a pen. PO Jafri did not provide § 87(2)(b) with a pen as she was screaming at PO Jafri for pulling her over for no reason. PO Jafri remained at the driver’s side window of § 87(2)(b) car while she located a pen inside her car. PO Jafri observed § 87(2)(b) write something down on a piece of paper, but did not look at what she wrote down. PO Jafri returned to his vehicle and left.

PO Klenke testified that he observed PO Jafri give § 87(2)(b) the summons, but was not sure if there was any conversation happening between PO Jafri and § 87(2)(b) and he could not hear any conversation as the patrol car’s windows were all closed. PO Klenke was taking notes regarding the stop and summons, so he was only paying slight attention to PO Jafri at this time.

PO Klenke denied witnessing § 87(2)(b) request any of PO Jafri’s identifying information or witnessing PO Jafri refuse to provide it. PO Jafri never conveyed to PO Klenke that an interaction of this nature transpired.

§ 87(2)(g)

Given this, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – At the 75th Precinct stationhouse in Brooklyn, Police Officer Jeanne Mounsey did not process § 87(2)(b) complaint regarding officers.

Allegation C – At the 75th Precinct stationhouse in Brooklyn, Police Officer Lisa Deese did not process § 87(2)(b) complaint regarding officers.

§ 87(2)(b) alleged that she appeared at the 75th Precinct stationhouse and requested to file a complaint regarding PO Jafri and the traffic summons she was issued. § 87(2)(b) allegedly walked through the double-doors between the civilian waiting area and the MOS area unaccompanied and was met by approximately six officers, including PO Mounsey (Board Review 08) and PO Deese (Board Review 06). PO Mounsey and PO Deese escorted § 87(2)(b) to the civilian waiting area and spoke with her about her complaint. After § 87(2)(b) told them what happened, PO Mounsey pointed to a poster on the wall which said, “Call 311,” and left the

room. PO Deese told § 87(2)(b) not to call 311, but to call the other phone number on the poster which belonged to the CCRB. § 87(2)(b) left the stationhouse and filed her complaint over the phone with the CCRB on the same day.

Neither PO Deese nor PO Mounsey recalled interacting with § 87(2)(b) and neither recognized her photo. Both officers denied participating in, or witnessing any officer participate in, this interaction. Both PO Deese and PO Mounsey denied refusing to process any civilian's complaint. No officer interviewed witnessed § 87(2)(b) interact with PO Deese or PO Mounsey, and all officers interviewed denied witnessing any officer refuse to process a civilian complaint. PO Mounsey described to the CCRB her understanding of the process of filing a complaint but she did not mention the possibility of § 87(2)(b) filing at the stationhouse. PO Deese did include the possibility of filing at the stationhouse, but denied being part of this interaction.

§ 87(2)(g)

It is therefore recommended that **Allegation B** and **Allegation C** be closed as **unsubstantiated**.

Squad: 12

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date